STATE OF SOUTH DAKOTA
DEPARTMENT OF HEALTH

BOARD OF MEDICAL AND OSTEOPATHIC EXAMINERS

IN THE MATTER OF: ERIC CLARK WELLING, MD	)))	No. 23-115 FINAL ORDER

The above captioned matter came before the South Dakota Board of Medical and Osteopathic Examiners (the Board) on March 14, 2023. Dr. Eric Clark Welling did not appear personally or through counsel. Board staff was present and represented by Assistant Attorney General Alexis Tracy. The Board, being otherwise fully informed of the facts and issues pertinent to the matter, issues the following:

The Board hereby

FINDS that Dr. Welling received a South Dakota medical license through the Interstate Medical Licensure Compact. The Board further

FINDS that Dr. Welling's Wyoming medical license was summarily suspended on November 4, 2022, related to suspension of Welling's privileges by Davis Hospital and Medical Center in Layton, Utah, and due to an Acumen Assessments evaluation. The Board further

FINDS that Dr. Welling's South Dakota medical license was summarily suspended on January 11, 2023, based on the Wyoming suspension Order. The Board further

FINDS that Dr. Welling's Wyoming medical license was permanently suspended on December 14, 2023. The Board further

FINDS that on February 20, 2024, Dr. Welling entered a Consent to Voluntarily Surrender his South Dakota medical license. A copy of the Consent to Surrender is attached hereto and incorporated herein.

Based upon the foregoing, it is hereby

ORDERED that the Consent to Voluntarily Surrender his South Dakota medical license entered into by Dr. Welling and Board Staff is hereby adopted. Dr. Welling's South Dakota medical license is deemed to have been surrendered effective February 20, 2024. It is further

ORDERED that Dr. Wellong shall not practice medicine, or prescribe medication, in any capacity in the state of South Dakota. It is further

ORDERED that this Order is a public record of the Board and the State of South Dakota and shall be published on the Board's website and reported as necessary to the national practitioner data bank and all other entities deemed appropriate by the Board in compliance with State and Federal law.

Dated this 14th day March, 2024

BOARD OF MEDICAL AND OSTEOPATHIC EXAMINERS

By: Aaron Shives, MD

Aaron Shives, MD
President

STATE OF SOUTH DAKOTA } S.S.
MINNEHAHA COUNTY

I hereby certify that the foregoing instrument is a true and correct copy of the original as the same appears on the record in my office.

Executive Secretary
By MBH by RLS
Date 3-14-24

STATE OF SOUTH DAKOTA

BOARD OF MEDICAL AND OSTEOPATHIC EXAMINERS

IN THE MATTER OF THE
LICENSURE PROCEEDINGS OF
Eric Clark Welling, MD

No. ~~24-097~~ 23-115

CONSENT TO VOLUNTARILY
SURRENDER
SOUTH DAKOTA MEDICAL
LICENSE

WHEREAS, Dr. Eric Clark Welling ("Dr. Welling") is licensed to practice as a physician in the state of South Dakota;

WHEREAS, Dr. Welling's Wyoming medical license was suspended related to privilege suspension by Davis Hospital and Medical Center in Layton, Utah, and Acumen Assessments evaluation, and the same resulted in a subsequent investigation of Dr. Welling's South Dakota medical license, which may constitute violations of SDCL 36-4-30(12), (22), and (24), SDCL 36-4-30.1, and ARSD 20:47:08 and subject Licensee to the disciplinary sanctions enumerated in SDCL §§ 36-4-29;

WHEREAS, in lieu of Revocation, Licensee has decided to voluntarily surrender Licensee's South Dakota license, as Licensee will no longer be practicing in the state of South Dakota; and

WHEREAS, Licensee agrees to voluntarily surrender Licensee's South Dakota license.

THEREFORE, it is hereby stipulated and agreed as follows:

1. The Board has jurisdiction over the person of the Dr. Welling and the subject matter of this Consent to Voluntarily Surrender License

("Consent").

2. Dr. Welling represents to the Board that Dr. Welling is surrendering to avoid further disciplinary action relating to the following allegations, which the Board has the burden of proving by clear and convincing evidence, but to which Dr. Welling admits:

a. Dr. Welling applied for a received a South Dakota medical license through the Interstate Medical Licensure Compact (IMLC) pathway.

b. Dr. Welling's Wyoming medical license was summarily suspended on November 4, 2022, related to privilege suspension by Davis Hospital and Medical Center in Layton, Utah and Acumen Assessments evaluation.

c. Dr. Welling's South Dakota medical license was summarily suspended based on the Wyoming order on January 11, 2023.

d. Dr. Welling's Wyoming medical license was permanently suspended on December 14, 2023.

3. Dr. Welling agrees that this surrender is a disciplinary action and is public information, which shall be published on the Board's website and reported to the National Practitioner Databank and any other Board or entity deemed necessary by the Board in compliance with State and Federal law.

4. Dr. Welling agrees to voluntarily and unconditionally surrender Dr. Welling's South Dakota license effective immediately by signing this Consent.

5. Dr. Welling agrees and stipulates that this Consent is being entered into voluntarily by Dr. Welling and without threats or coercion and is entered into after Dr. Welling has been given ample opportunity to consider these matters and to discuss this Consent with an attorney of Dr.

Welling's choice and that Dr. Welling has a full understanding of the legal consequences of this Consent, which rights are hereby waived by the signing of this Consent.

6. Dr. Welling acknowledges that by entering this Consent, Dr. Welling knowingly and voluntarily waives all rights available pursuant to SDCL chs. 1-26, 36-1C, 36-4, ARSD 20:78 and ARSD 20:47. These rights specifically include, but are not limited to, the right to be represented by counsel; the right to notice and a due process hearing at which Dr. Welling has the right to introduce evidence and testimony on his behalf, to call witnesses and cross-examine any adverse witness; and the right to appeal the Board's decision to a South Dakota Circuit Court and the South Dakota Supreme Court.

7. Dr. Welling agrees and acknowledges that the Board has reporting requirements, and Dr. Welling consents to documents and information relating to his investigation and surrender being provided to all required entities and to state licensing authorities upon request.

8. Dr. Welling understands that if complaints are submitted against Dr. Welling that arise from the time Dr. Welling had a South Dakota license, Dr. Welling is subject to the jurisdiction of the Board for any discipline that may be lawfully imposed on the surrendered South Dakota license or may be imposed as a condition of reinstatement of license.

9. Dr. Welling agrees that this Consent is subject to approval by the Board. Dr. Welling further agrees that in the event the Board does not approve this Consent, any argument that the Board members considering

this matter should be disqualified from later rendering a decision in any subsequent contested case hearing regarding the complaint is hereby waived.

NOW, THEREFORE, I, Eric Clark Welling, MD, voluntarily and unconditionally surrender my South Dakota Medical License effective immediately by affixing my signature to this agreement.

By: Eric C. Welling Date: 2/19/2024
Eric Clark Welling, MD

By: _____ Date: _____
Attorney for Eric Clark Welling, MD (optional)

By: Margaret B. Hansen Date: 02/20/2024
South Dakota Board of Medical and Osteopathic Examiners

STATE OF SOUTH DAKOTA } S.S.
MINNEHAHA COUNTY

I hereby certify that the foregoing instrument is a true and correct copy of the original as the same appears of record in my office.

Executive Secretary
By MBH by RLS
Date 2.20.24